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Teaming Agreement Template.

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Key Clauses to Include

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PRE-AWARD AGREEMENT · BEFORE THE RFP IS WON

Teaming Agreement — Key Clauses and Structure.

Key clauses and structure for federal contractor teaming arrangements.

LEGAL NOTICE

This template is provided for educational and planning purposes only. Have a qualified attorney review any teaming agreement before execution, particularly exclusivity clauses and IP provisions.

A teaming agreement (TA) defines the relationship between a prime contractor and its proposed subcontractors **before** an RFP is won. It is NOT the subcontract. The subcontract is executed after award. The TA is the pre-award handshake that says: if we win, here's the work split, here's how we behave during the bid, here's who owns what we build together.

Key Clauses to Include.

CLAUSE	PURPOSE	NEGOTIATION POINTS
Opportunity Identification	Defines the specific solicitation(s) this TA covers	Be specific. Broad TAs can create problems on other bids
Teaming Roles	Defines prime vs. sub, work split, and each party's scope	Nail down the % work allocation and specific task areas
Exclusivity	Whether either party can team with competitors on this bid	Mutual exclusivity is standard; define exceptions carefully
Confidentiality / NDA	Protects proprietary information shared during bid prep	Define 'Confidential Information' precisely; set term (2-5 years)
Cost and Pricing	Who prepares what portions of the price proposal	Agree on rates and markups before the proposal is due
Subcontract Commitment	Prime's obligation to award sub the agreed work upon win	'Shall' is enforceable; 'will use best efforts' is not
IP and Data Rights	Who owns technical data, software, and approaches developed during the bid	Background IP vs. foreground IP. Critical for tech companies
Governance	Decision-making process, proposal review, dispute resolution	Name a specific POC from each party with authority
Term and Termination	Duration of the TA and exit conditions	Should survive through the award decision at minimum
No Agency	Confirms neither party can bind the other to third parties	Standard clause. Non-negotiable

Teaming Agreement Checklist.

Run this list before signatures hit the page. If any line is unchecked, the TA is not ready to execute.

Both parties' full legal names, addresses, and authorized signatories defined

Opportunity / solicitation specifically identified ([SAM.gov](https://sam.gov) notice number)

Work allocation percentages agreed (e.g., Prime: 60%, Sub: 40%)

Exclusivity terms clearly stated and mutually acknowledged

NDA provisions adequate for the sensitivity of information being shared

Subcontract commitment language uses 'shall' not 'will endeavor to'

IP ownership defined for both pre-existing and newly developed materials

Governing law and dispute resolution specified

Signatures from authorized officers (not just employees) of both parties

Executed copies held by both parties

Common Teaming Agreement Mistakes.

Too many TAs, too little vetting. Signing TAs with unverified partners is worse than going solo. Vet every partner: check their SAM registration, past performance rating, and financial stability.

'Best efforts' subcontract commitment. Courts have routinely found 'best efforts' language is unenforceable. Get a 'shall award' commitment in writing.

No work allocation in writing. If the work split isn't in the TA, the prime can give you nothing and it's legal. Be specific.

Missing exclusivity on both sides. If you sign exclusivity but the prime doesn't, they can team with your competitor and still use your IP.

Signed too late. A TA signed after the proposal is submitted has reduced legal standing. Execute at least 2 weeks before submission.

How to use this template.

The clauses table on page one is the skeleton. Most teaming agreements you'll see in the wild are five to fifteen pages and run those same ten sections in the same order. Print the page-one table, redline it during negotiation, and hand it to counsel as the basis for the draft.

FIELD TIP – THE 'SHALL' TEST

Open the draft, search for the word 'endeavor', 'best efforts', and 'reasonable efforts'. Every hit is a clause the other party can walk away from with no legal exposure. Replace with 'shall' where you have the leverage. If the prime won't sign a 'shall award' commitment, you're being kept on the bench as a placeholder, not a teammate.

Vet the partner before you sign.

A bad partner sinks a good bid. Before you put your name on a TA, pull these four data points on the other firm. Twenty minutes of vetting saves twenty months of cleanup.

SAM.gov registration	Active, not expired. Look at the registration date and any exclusions list.
CPARS / past performance	Pull their public past-performance record. Look for trend, not single scores.
Financial stability	Dun & Bradstreet, state corporate filings, any open litigation on PACER.
Small-business status	Verify the certification they're claiming (8(a), SDVOSB, WOSB, HUBZone) is current on SAM.gov.

When to bring in counsel.

Three sections of the TA need an attorney's eyes, every time:

- 1. Exclusivity.** The wrong scope here can block you from bidding adjacent opportunities for the term of the agreement.
- 2. IP and data rights.** Foreground IP, background IP, and government-purpose rights interact in ways that surprise non-specialists. Get it wrong and you're licensing your own software back from your partner.
- 3. Subcontract commitment language.** 'Shall award' vs. 'will negotiate in good faith' vs. 'reserves the right' — three phrases that look similar and behave nothing alike in court.

Timing rule: get the TA executed at least two weeks before proposal submission. A TA dated the day of submission, or after, gives a court reason to question whether the parties actually relied on it. The earlier the signature, the stronger the document.

WHAT'S NEXT

A signed TA is the difference between a teammate and a placeholder.

Use the page-one clause table as your negotiation map. Run the page-two checklist before signatures. Have counsel review exclusivity, IP, and subcontract commitment language. Execute at least two weeks before submission, and keep an executed copy on file with the proposal. CapturePilot tracks your teaming partners alongside the opportunities they're attached to, so the next time you bid with the same prime, the TA template, contact, and work-split history are already on the page.

Get the full Federal Lead Kit

[HTTPS://WWW.CAPTUREPILOT.COM/STARTUP-PACK](https://www.capturepilot.com/startup-pack)